

Foreign Pollution

Should Houston Continue Offsetting Foreign Pollution Impacts to Achieve Attainment?



THE AL LAW GROUP

Jed Anderson

The AL Law Group PLLC

RAQPC Presentation

March 30, 2017

The world has changed.

Our understanding has changed.

One world.

One atmosphere.



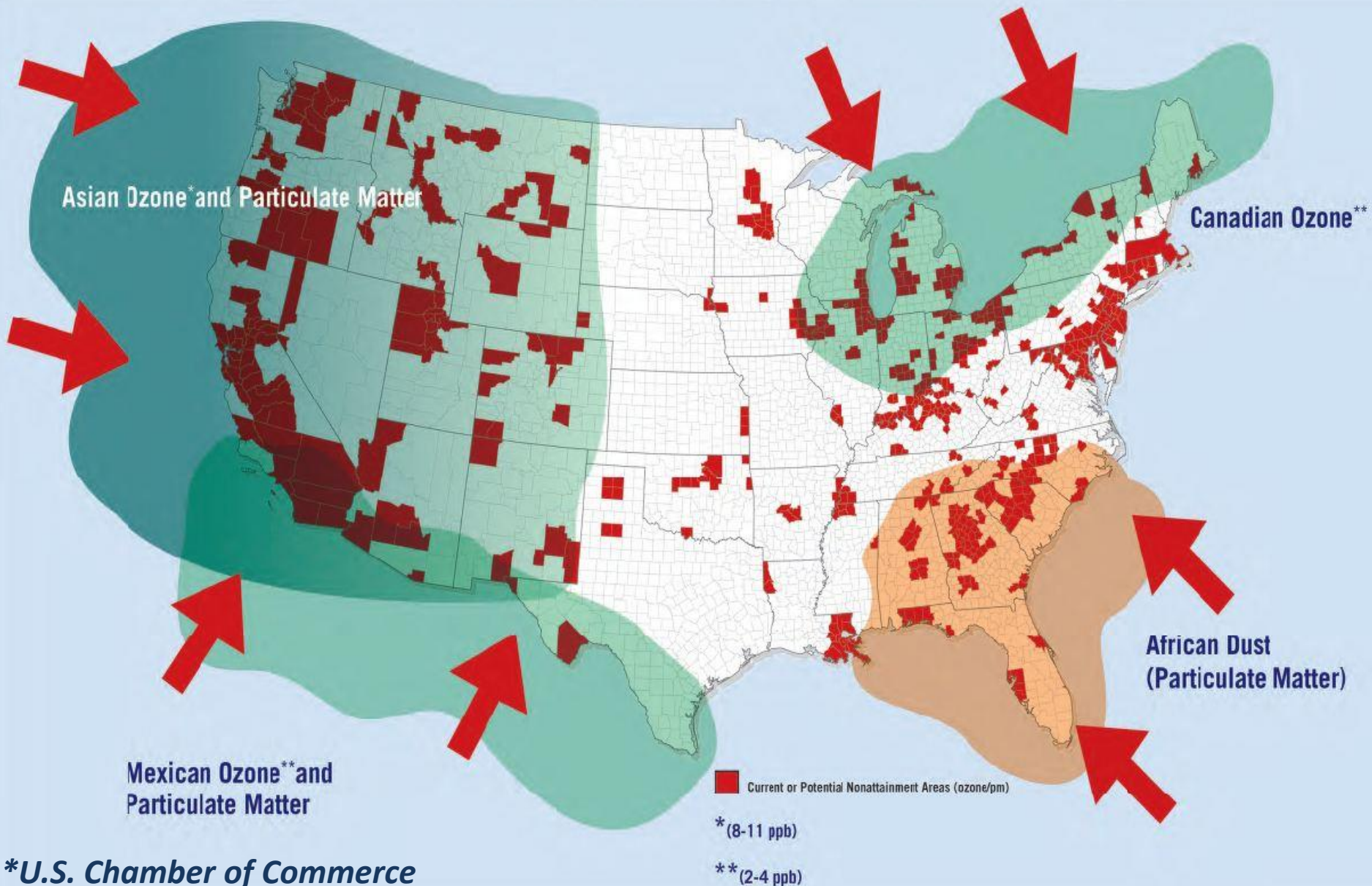
Ozone now a **Global** issue.



A pair of hands is shown holding a small, realistic-looking globe of the Earth. The globe is positioned centrally, showing the continents of Africa, Europe, and Asia, along with the surrounding oceans and swirling white clouds. The hands are cupped around the globe, with fingers visible at the bottom and sides. The lighting is warm, highlighting the texture of the skin and the details of the globe. Overlaid on the center of the globe is the text "It's a Small Multi-Pollutant World After All" in a bold, yellow, sans-serif font.

**“It’s a Small Multi-Pollutant
World After All”**

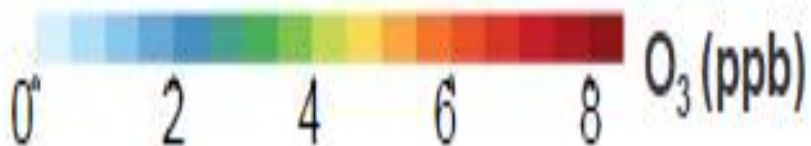
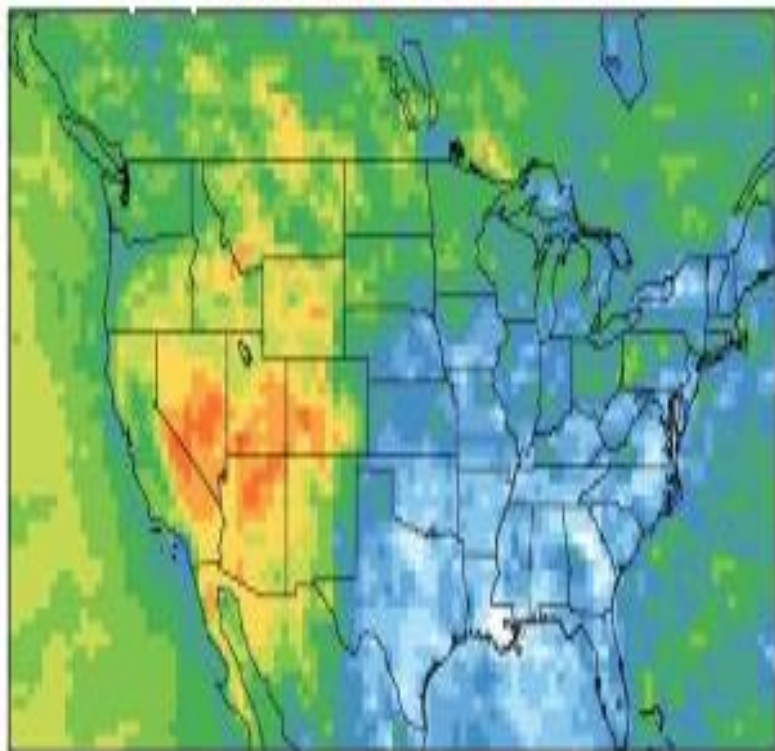
Impact of Foreign Air Pollutants



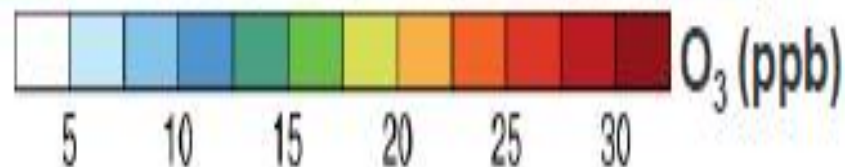
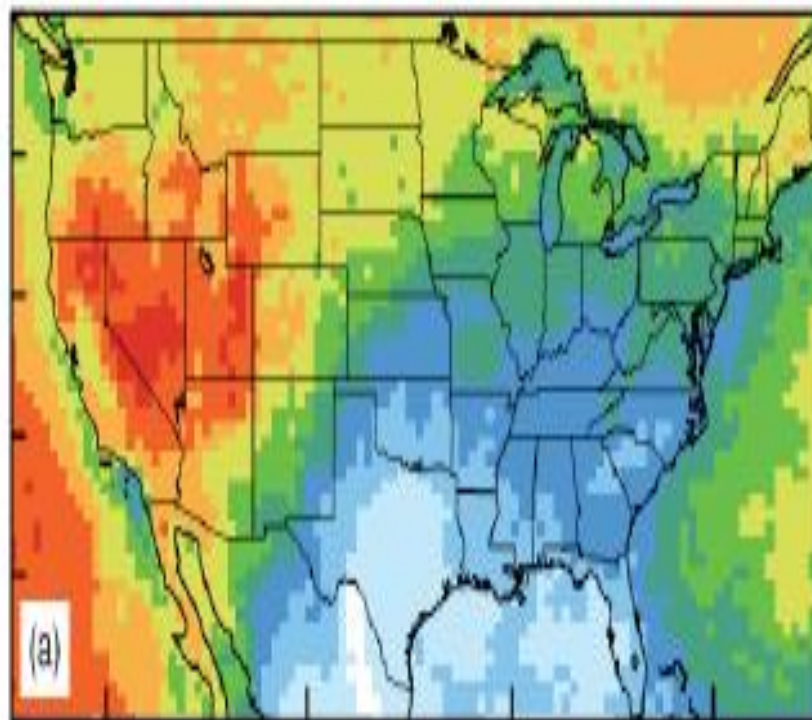
The World is Growing Up Around Us

Ex./ Ozone Pollution Blowing into the U.S. from Overseas

Asian: May-June 2010



Stratospheric (O3S): April-June 2010



Houston Impacts

Foreign pollution is affecting the Houston area's health and attainment efforts



A Sign Post of this Presentation

- ❖ How the Clean Air Act deals with (doesn't deal with) foreign pollution
- ❖ How foreign pollution is currently addressed in the Houston SIP
- ❖ Attempts to fix problem and suggested path forward



Foreign Pollution and the Clean Air Act



The Clean Air Act Assumes that Air Pollution is Largely a Local Problem

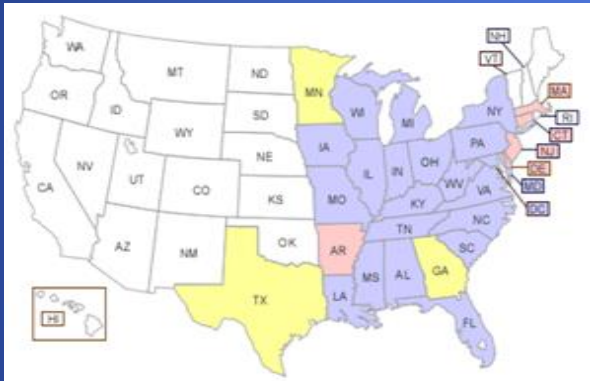
---“**Each State** shall have the **primary responsibility for assuring air quality** within the entire geographic area comprising such state by submitting an implementation plan for such State which will specify the manner in which national primary and secondary ambient air quality standards will be achieved and maintained . . .” **(Clean Air Act, Section 107(a))**

More and More Pollution is Outside State/Local Control

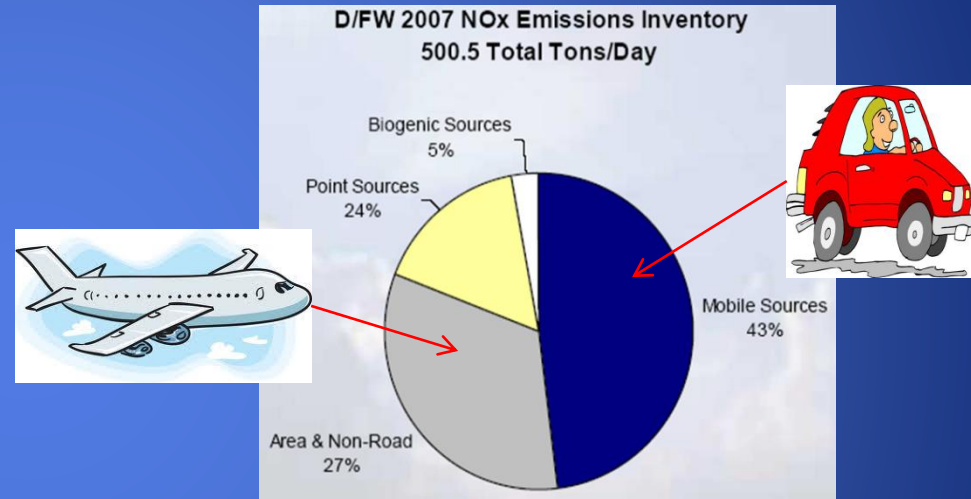
"It's Becoming a Small Multi-Pollutant World After All"

Interstate Pollutant Transport

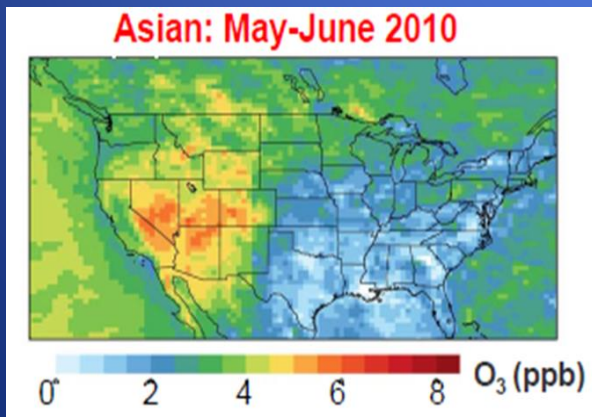
Ex. CAIR/CSAPR



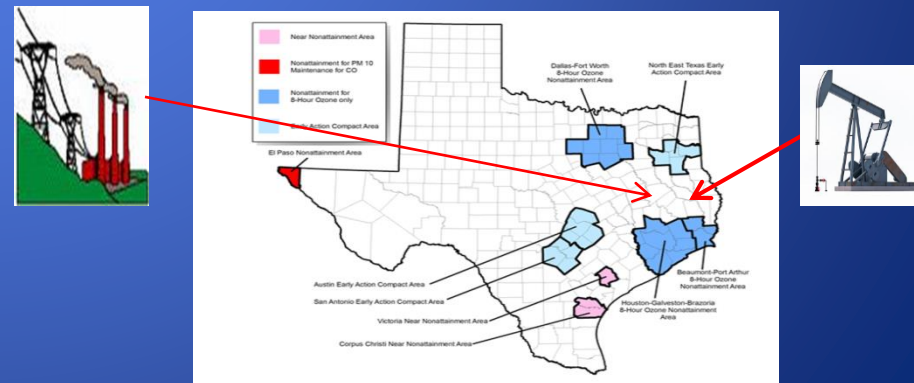
Federally Controlled Mobile Sources



International Pollutant Transport



Intrastate Pollutant Transport



Achieving the Ozone NAAQS in Houston

70 PPB NAAQS

~12%

State Controlled

Federally
Preempted Mobile

~30%



Background
Pollution



~58%



100%

States
Responsible
for 100%!

(42 USC §7407)

State controlled sources are still significantly controlled by the Federal government via rollout of Federal programs and initiatives (ex. NSPS, MACT, GHG initiatives, CSAPR, NSR)

Foreign pollution is ultimately the responsibility of the States under the current Clean Air Act—but some tools available such as Section 179B and “exceptional event” demonstrations to remove this responsibility.

Section 179B

“A SIP shall be approved if ‘the submitting State establishes to the satisfaction of [EPA] that the implementation plan of such State would be adequate to attain [the NAAQS] . . . **but for emissions emanating from outside the United States.**’”

EPA and Congress have said that States do not need to accept responsibility for foreign pollution

- **“The EPA does not expect States to restrict emissions from domestic sources to offset the impacts of international transport of pollution.”**
---U.S. EPA
- **“[T]he EPA will not hold States responsible for developing strategies to “compensate” for the effects of emissions from foreign sources”.** ----U.S. EPA
- **“Congress clearly wanted to avoid penalizing such areas by not making them responsible for control of emissions emanating from a foreign country over which they have no jurisdiction.”** ---U.S. EPA
- **“*The Clean Air Act does not ask States to reduce background levels.*”** —
Gina McCarthy, EPA Administrator, Congressional Testimony, April 2, 2014

A photograph of Gina McCarthy, U.S. EPA Administrator, seated at a wooden table during a public hearing. She is wearing a dark green blazer over a dark top and has short white hair and glasses. She is looking slightly to her left with a serious expression. In front of her is a microphone and a nameplate that reads "ADMINISTRATOR McCARTHY". To her left is a small water bottle and a white cup. To her right is a large stack of papers and another white cup. The background shows other people seated at similar tables, out of focus.

“The Clean Air Act does not ask States to reduce background levels.”

—Gina McCarthy, U.S. EPA Administrator

A photograph of Janet McCabe, a woman with short, curly brown hair and glasses, wearing a red blazer over a dark top. She is seated at a wooden table during what appears to be a congressional hearing. In front of her is a nameplate that reads "Hon. McCabe". To her right is a small white cup on a black base and a large glass of water. Behind her, several men in dark suits and ties are partially visible, some holding pens and papers. The background is slightly blurred, focusing attention on McCabe.

“I will note that the Clean Air Act does not hold States responsible for pollution that they do not control.”

— Janet McCabe, EPA, Congressional Testimony

“If we can document anything that is coming into nationally we certainly recognize that that’s not something the State will be responsible for.”

--Gina McCarthy, EPA Administrator, June 23, 2016
Congressional Testimony

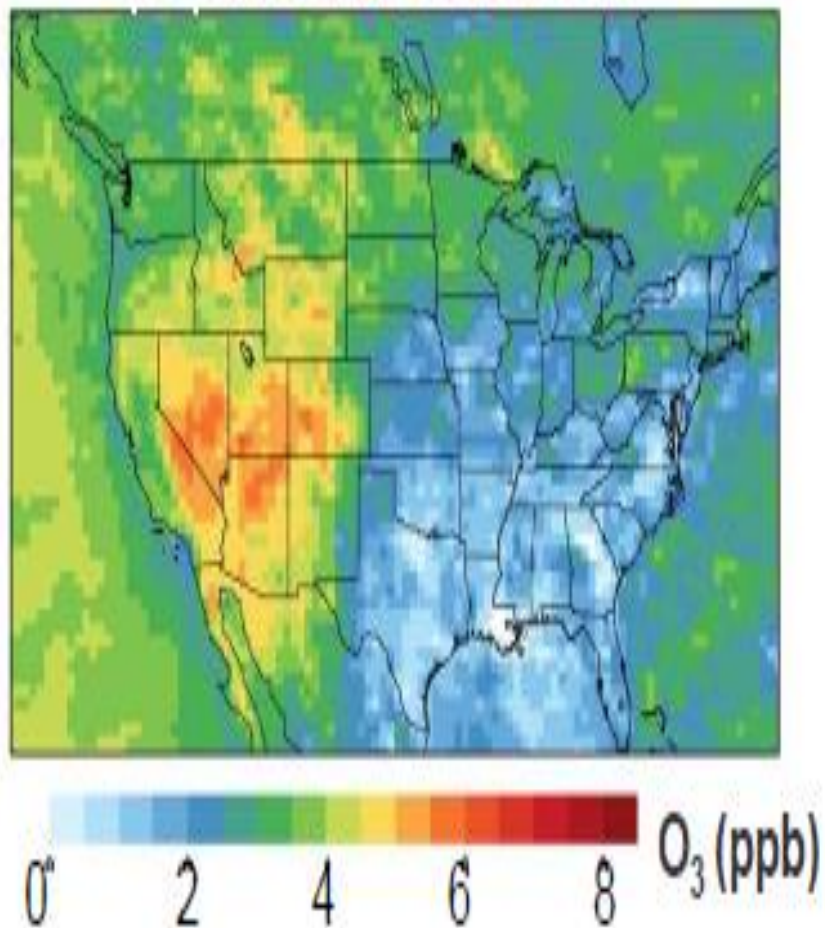
See <http://www.youtube.com/watch?v=FgA7XFS01XM&t=2m16s>



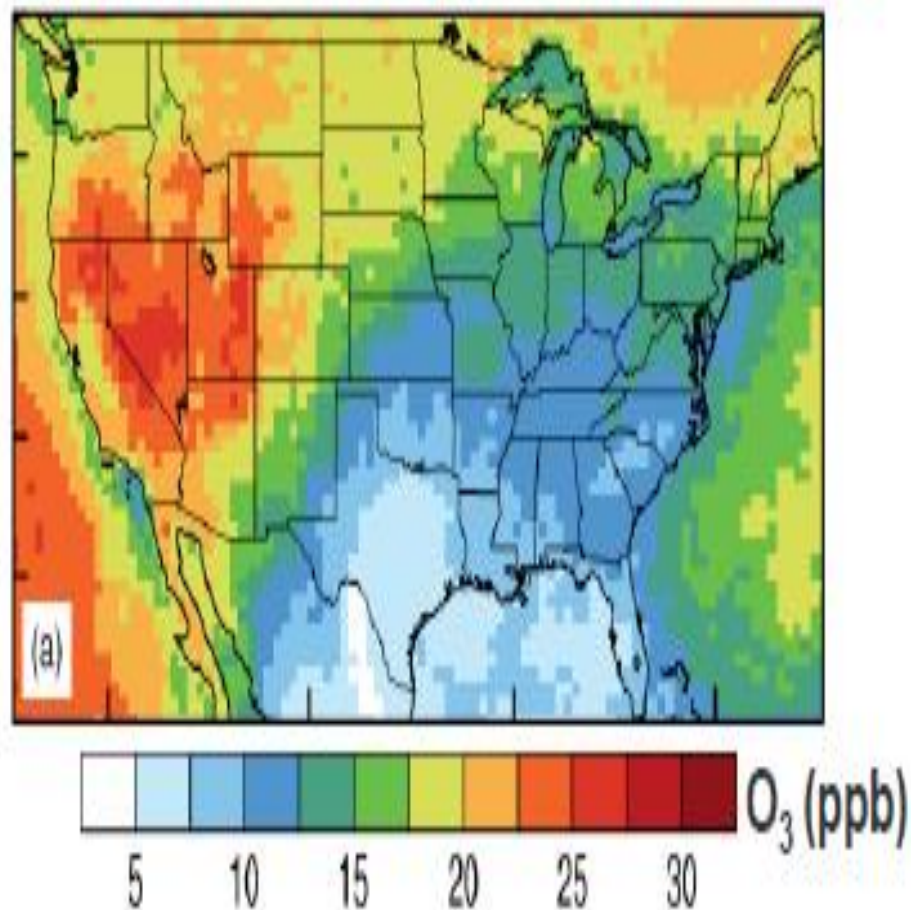
EPA and other Studies
Prove that Foreign
Pollution is Blowing into
the U.S. and Texas

Ozone Pollution Blowing into the U.S. from Overseas

Asian: May-June 2010



Stratospheric (O_3S): April-June 2010





If EPA tightens the ozone standard it will have no choice but to view ozone as a global pollution problem. —Daniel Jacob, Harvard University,
E&E News, 11/17/14



“The level the EPA says is safe is getting closer and closer to what’s blowing across the ocean”

“To control pollution, Americans need to think globally.” — Dan Jaffe, University of Washington

A photograph of Jeff Holmstead, a man in a dark suit and orange tie, sitting at a wooden table during a congressional hearing. He is looking down at papers on the table. A nameplate in front of him reads "MR. HOLMSTEAD". Several water bottles and a microphone are also on the table. Other people are partially visible in the background.

**“Ozone is a
global issue.”**

**"The way that we deal with ozone today just
no longer makes any sense.”** —Jeff Holmstead, Bracewell &

Giuliani, Former EPA Assistant Administrator for Air, Congressional Testimony
10/22/15



“International sources responsible for 68% of ozone pollution in Arizona nonattainment area”.

alili

Mr. Cabrera

Mr. Mathe



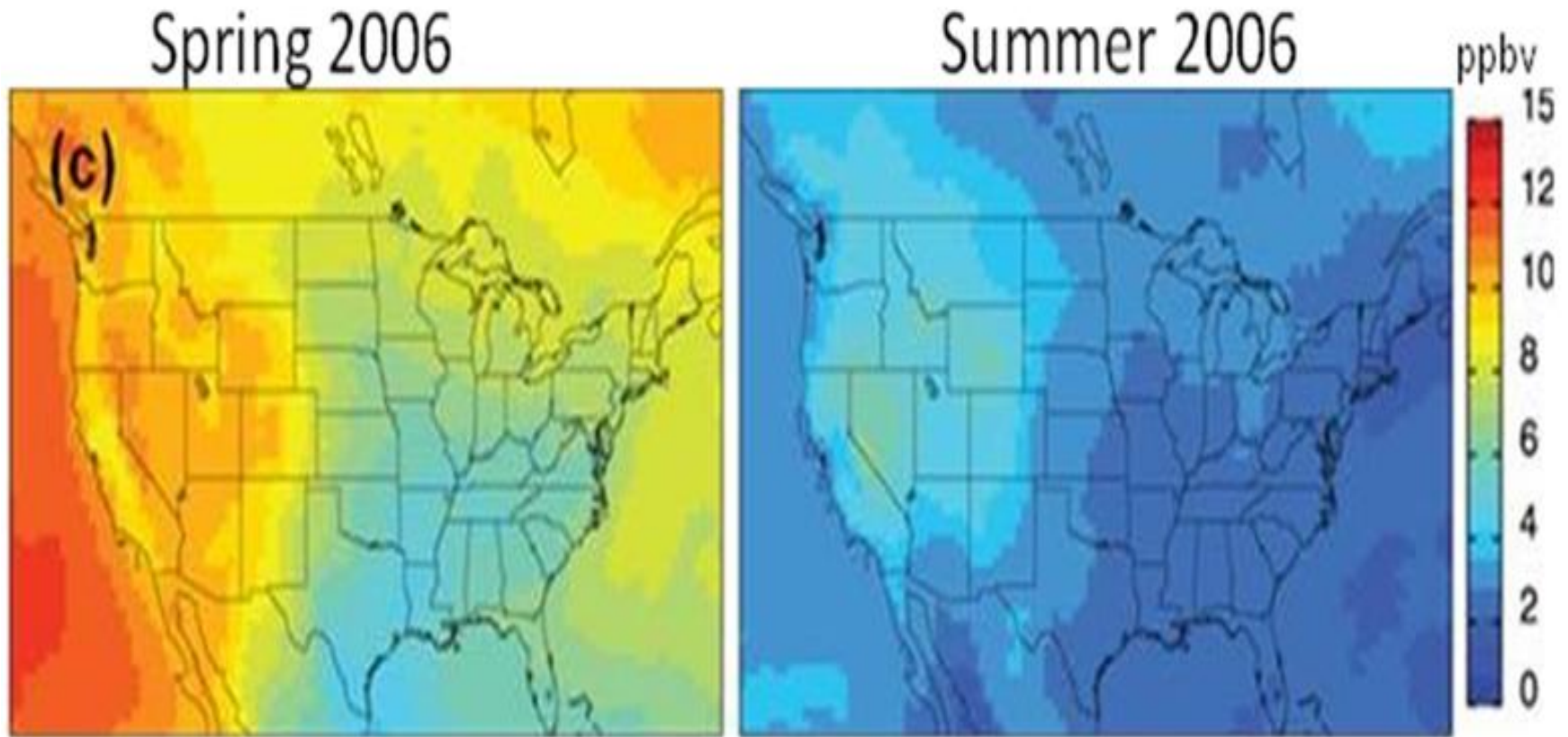
The Area is forced to put controls on local sources of pollution for “pollution that they did not create and that the state cannot regulate.”

alili

Mr. Cabrera

Mr. Mathe

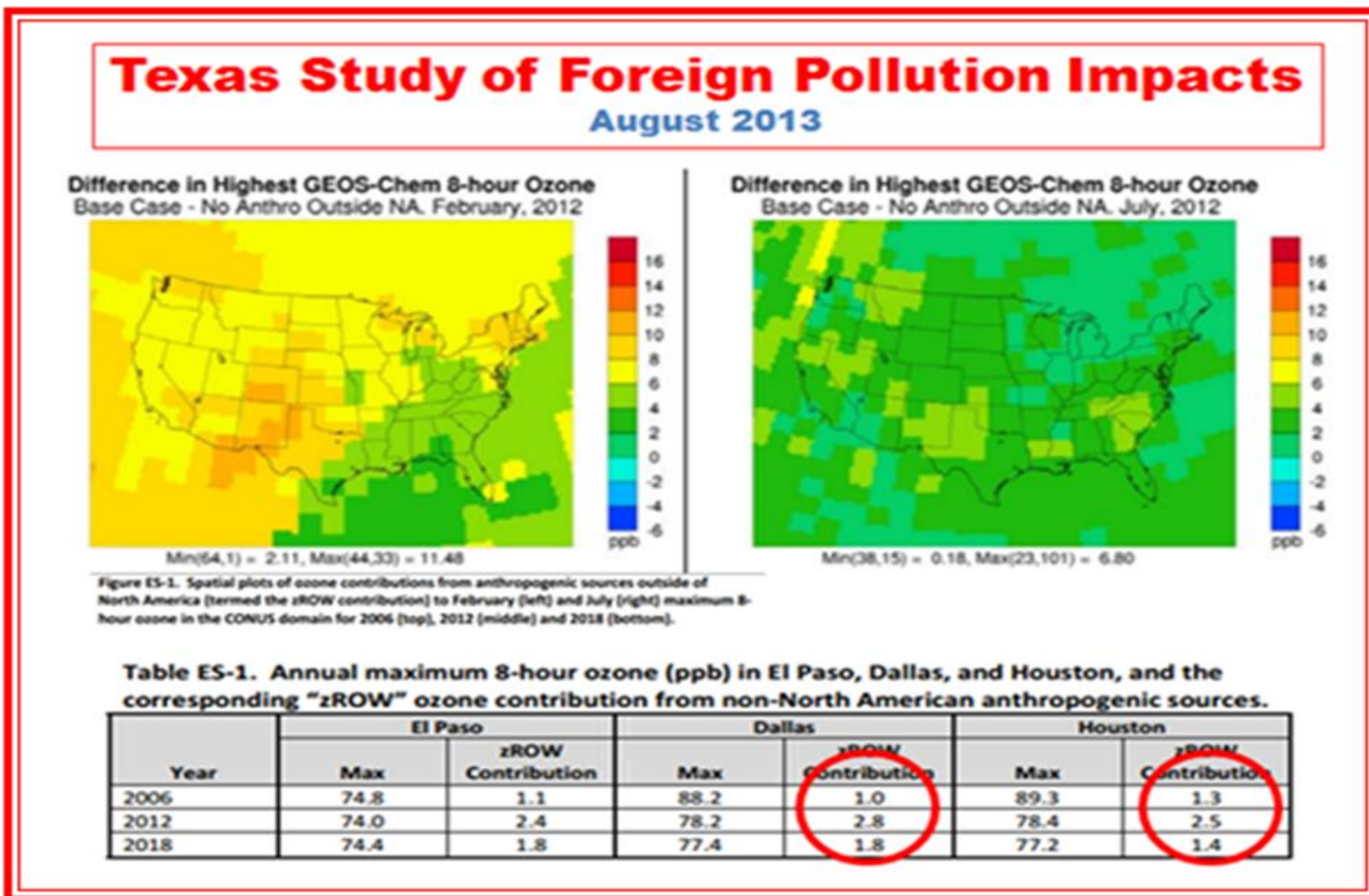
Foreign Pollution Impact on the Health of Texans and the Texas SIP in 2006



**Harvard University, Dr. Lin Zhang, "Domestic and foreign source attribution of nitrogen deposition and surface ozone pollution over the United States", March 2011

TCEQ's Sponsored Foreign Pollution Study (Environ August 2013)

TCEQ's study indicated over **1 ppb contribution** from overseas foreign pollution—excluding pollution impacts from Mexico.



EPA August 2014 Staff Report cited **Mexico** Contributing Up to **12 ppb** of Ozone to Texas

(see <http://www.epa.gov/ttn/naaqs/standards/ozone/data/20140829pa.pdf>)

The difference between the NAB and USB scenarios is easier to interpret as it only involves one change, the inclusion of anthropogenic emissions from the in-domain portion of Canada and Mexico. These emissions (not shown here, but depicted in Appendix A) contribute less than 2 ppb to the seasonal mean MDA8 O₃ levels over most of the U.S. There are 70 sites, near an international border, where the modeling estimates Canadian/Mexican seasonal average impacts of 2-4 ppb. Peak single-day MDA8 impacts from these specific international emissions sources can approach 25 ppb (e.g., San Diego, Buffalo NY).



Figure 2-17. Differences in seasonal mean O₃ (ppb) between the NAB and NB scenarios.

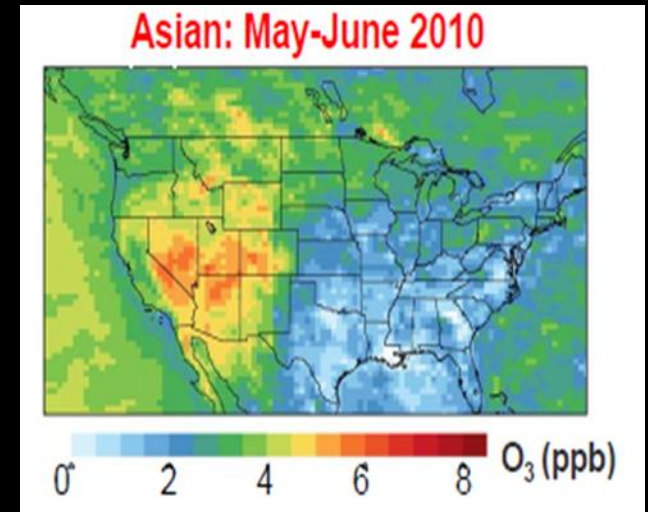
Foreign Pollution and the Houston SIP

Zero

Houston SIP essentially assumes that not even one molecule of foreign pollution blows into the Houston area.*

* If we admit a molecule blows in, then we would need to admit that its being offset by additional local controls to demonstrate attainment.

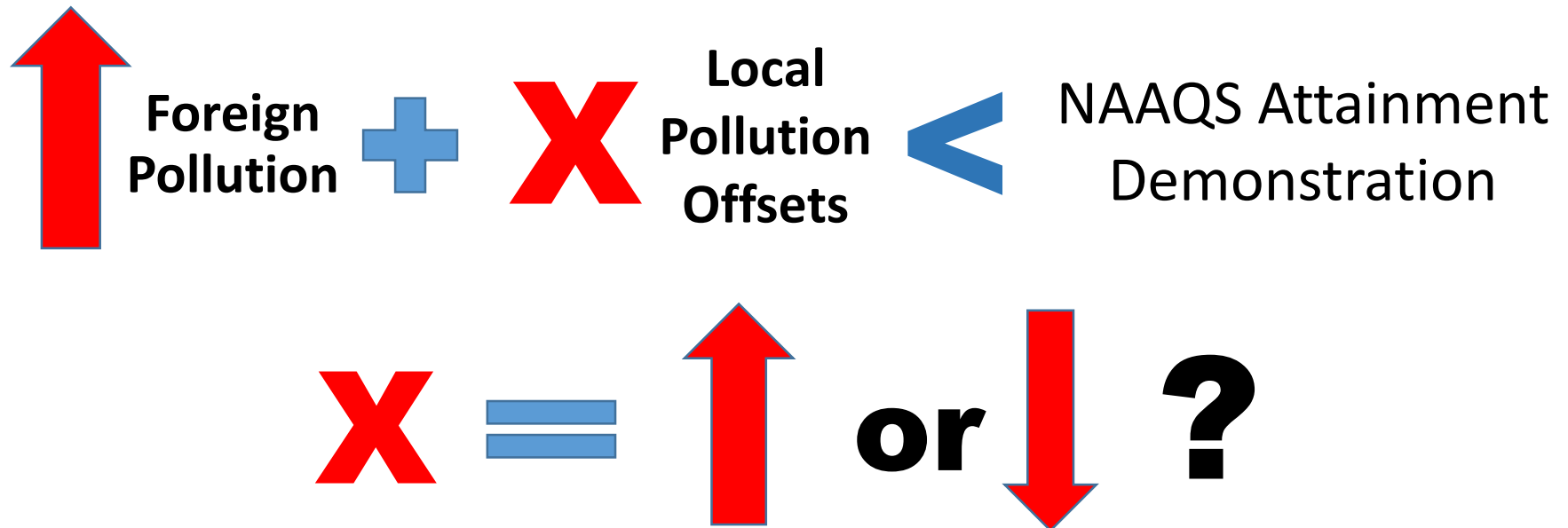
The Truth that is Not Being Told



The Houston-Galveston Area is choosing to spend billions of dollars of extra local money to reduce foreign pollution impacts (in addition to spending money reducing local pollution impacts) by implementing extra controls on local sources.

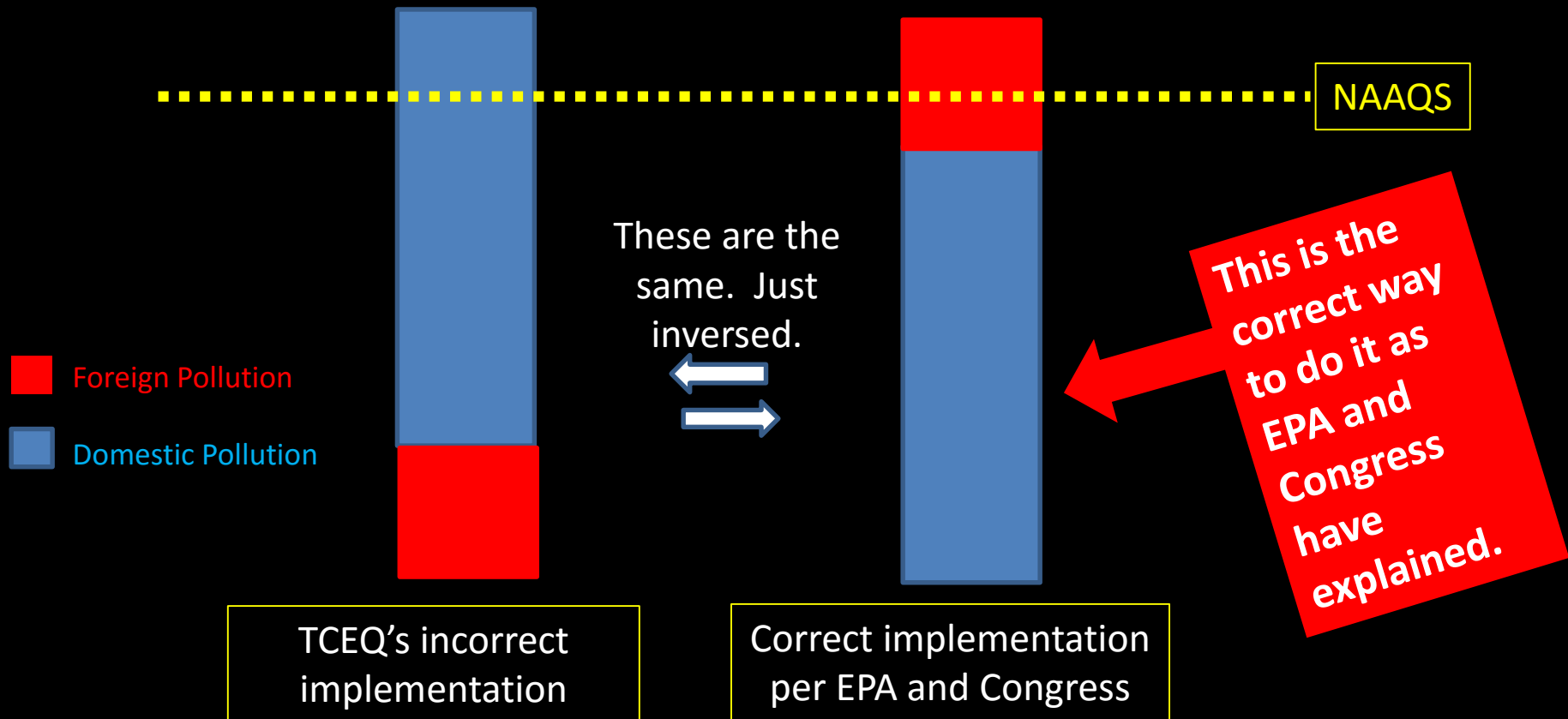
[Demonstration]

States Requiring Citizens to Offset Billions of Dollars in Foreign Pollution Impacts



Foreign Pollution and the SIP Process

Section 179B's "But for" Test



EPA and Congress have indicated to States that States don't need to offset foreign pollution—but that's exactly what States are doing.

“The EPA does not expect States to restrict emissions from domestic sources to offset the impacts of international transport of pollution.” ----U.S. EPA

“[T]he EPA will not hold States responsible for developing strategies to “compensate” for the effects of emissions from foreign sources”. ----U.S. EPA

**“Congress clearly wanted to avoid penalizing such areas by not making them responsible for control of emissions emanating from a foreign country over which they have no jurisdiction.”---
U.S. EPA**

Efforts to Fix the Problem and the Future

Lawyer wants Texans not to pay for smog from Mexico

Outside polluters costing Texas industries

Lawyer wants state to stop paying for foreign smog

MATTHEW TRESAUGUE

, HOUSTON CHRONICLE Published 5:30 am, Sunday, May 22, 2011

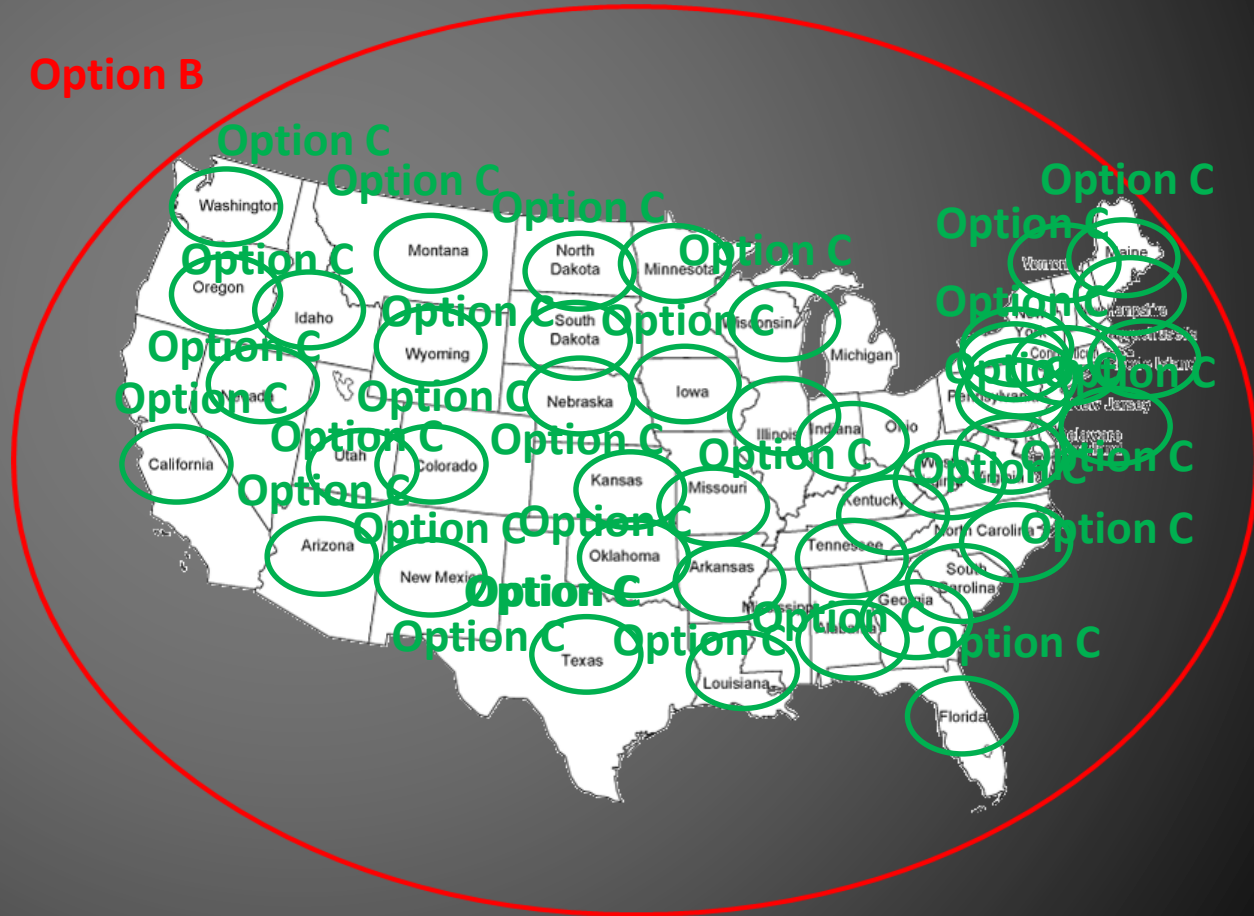


Best Way to Address Foreign Pollution?

Option A



Option B



* I would suggest that it's not the current way . . . Option C (see 42 U.S.C. § 7407(a))

Who should be Responsible for Addressing Foreign Pollution Impacts to Houston?

Option A

The
International
Community



Option B

The U.S.
Government



Option C

States and Local
Governments
via the SIP
Process



A 21st Century Clean Air Act



The Clean Air Act
Reauthorization
of 2017

We can make it happen.



“The **A**ccord on **G**lobal **A**ir
Pollution and the
Environment” or (“**A**gape”)

The “*Clean Air Act
Reauthorization of
2017*” calls for
development and
integration of an
International Multi-
Pollutant Agreement
into the Clean Air Act



Ozone Bill and Foreign Pollution

----"As communities across America try to navigate an ever changing standard process, we must have better information on how foreign sources of pollution impact our air quality," -----Rep. Pete Olson, February 1 , 2017

The Relevance of Foreign Pollution to the U.S. is Expected to Increase in the Future

“For North America ground-level ozone concentrations [. . .] changes in emissions of ozone precursors outside the region may be as important as changes within the region.”

---2010 United Nation's Hemispheric Transport of Air Pollution Report



United Nations

A photograph of a Disney castle, likely Cinderella Castle, illuminated at night. The castle is lit up with warm yellow and orange lights, contrasting with the deep blue night sky filled with many bright, white stars. The castle's architecture features multiple towers, spires, and a central clock face. The overall scene is magical and whimsical.

“It’s a Small World After All”

Time for Houston to stop accepting responsibility for foreign pollution impacts, demand that those who can more effectively address this aspect of the problem address it, and adapt local attainment efforts to a changing world.